

K SCAN AI

Terms and Conditions

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K Scan AI is the inspiration-to-conversion layer for fashion - a privacy-first, retailer-neutral system that turns real-world style discovery into fast, shoppable outcomes across mobile and emerging wearable interfaces.

This public version is prepared for website publication, mobile app legal screens, and app-store submission use.

These Terms and Conditions ("Terms") govern your access to and use of the K Scan AI website, mobile application, APIs, AI systems, software, visual commerce tools, and related products, services, and features (collectively, the "Service").

By accessing, downloading, registering for, or using the Service, you agree to these Terms and to our Privacy Policy. If you do not agree, you may not use the Service.

Our Privacy Policy is available at:

<https://kscan.app/privacy>

The Privacy Policy is incorporated into these Terms by reference.

Terms Summary

- K Scan AI provides AI-powered fashion discovery, visual analysis, product matching, and commerce-routing tools.
- AI outputs may be incomplete, approximate, inaccurate, outdated, or based on visually similar rather than identical products.
- You retain ownership of your uploaded content. K Scan receives only the limited rights needed to operate, secure, maintain, improve, and provide the Service as described below.
- K Scan does not sell raw uploaded scans or images and does not use scan content for facial recognition, biometric identification, or surveillance.
- K Scan may share limited non-sensitive information with service providers, retail partners, affiliate partners, analytics providers, attribution partners, and marketing partners as described in the Privacy Policy and subject to applicable law, consent, opt-out rights, contractual restrictions, and platform rules.
- K Scan may create, use, disclose, license, sell, or commercialize aggregated, anonymized, or de-identified demand intelligence that does not reasonably identify you.
- If you create an account, you may delete your account through the app at Settings > Account > Delete Account.

1. Definitions

Service means the K Scan AI platform, including websites, applications, APIs, AI systems, visual commerce systems, software, and related services.

AI Outputs means recommendations, styling suggestions, visual matches, product identifications, similarity analyses, commerce-routing results, generated metadata, or other outputs generated through the Service.

User Content means images, photographs, screenshots, text, styling inputs, prompts, profile information, preferences, and other materials uploaded or submitted by users.

Retail Partners means third-party retailers, marketplaces, affiliate partners, advertisers, brands, commerce providers, or other third parties linked through, measured by, or made available through the Service.

Raw Scan Data means original camera uploads, image files, screenshots, QR/barcode captures, or other unaltered content submitted for scanning.

Derived Scan Data means metadata or analysis generated from a scan, such as garment attributes, color, texture, product-match signals, category predictions, visual-search embeddings, or similar technical outputs. K Scan may use and share Derived Scan Data as described in the Privacy Policy. K Scan does not sell raw scans or derived scan data that contains biometric identifiers or personally identifiable imagery.

Commercial and Preference Data means saved items, product interactions, style preferences, shopping activity, affiliate attribution data, product-interest signals, and fashion-related preferences.

Aggregated Demand Intelligence means aggregated, anonymized, or de-identified market, product, style, trend, scan, retailer, conversion, or demand insights that do not reasonably identify an individual.

2. Acceptance of Terms and Separate Privacy Choices

By creating an account, accessing, downloading, registering for, or using the Service, you agree to these Terms and all applicable laws.

Where applicable law or platform rules require separate consent for non-essential tracking, targeted advertising, sale or sharing as defined by privacy law, or similar activities, that consent will not be bundled into acceptance of these Terms.

If you decline or withdraw such consent, you may still use the core Service, although optional personalization, marketing, advertising-supported, attribution-supported, or partner-supported experiences may change.

3. Eligibility

The Service is intended for users aged 13 and older.

If you are under the age of majority where you live, you may use the Service only with permission from a parent or legal guardian, or with verifiable parental consent where required by applicable law.

You may not use the Service if prohibited by law or if K Scan previously terminated or suspended your access.

4. Accounts, Security, and Account Deletion

If you create an account, you agree to:

- provide accurate, complete, and current information;
- maintain the confidentiality of your login credentials;
- accept responsibility for activity that occurs under your account;
- notify K Scan promptly if you suspect unauthorized access, account misuse, or a security issue.

Account deletion

You may delete your K Scan account and associated personal information at any time through the in-app Settings menu under Settings > Account > Delete Account.

This option is available regardless of whether you created your account through email, Sign in with Apple, Google Sign-In, or another supported authentication method.

Upon account deletion, your profile, saved items, scan history, preferences, and contact information will be permanently deleted within 30 days, except where retention is legally required or permitted for security, fraud prevention, legal compliance, dispute resolution, tax, accounting, backup recovery, or other legitimate purposes.

Raw scan data associated with your account will be deleted in accordance with our standard retention period, as described in the Privacy Policy, unless saved by you, required for functionality, required for security, needed to troubleshoot a user-requested issue, or legally required.

Aggregated, anonymized, or de-identified data that cannot reasonably be linked back to you may be retained.

If you signed in using Sign in with Apple or another third-party login provider, K Scan will handle account deletion consistently with our Privacy Policy and applicable platform requirements, including disconnecting or revoking related login credentials where applicable.

K Scan may also provide a web-based account deletion request resource, in addition to the in-app deletion flow, to support platform-specific requirements and user privacy controls. Privacy choices and web-based deletion resources are available through <https://kscan.app/do-not-sell-or-share> or another page designated in the Privacy Policy.

You may also contact us at kscanai.app@gmail.com for deletion assistance.

Account-free access

If account creation is not required for a particular feature, K Scan may make that feature available without requiring you to sign in. Some features, such as saved items, Style Boards, account history, or personalization, may require an account.

5. Privacy and Data Use

Your use of the Service is governed by our Privacy Policy.

K Scan's data practices are designed to protect raw scan content while enabling privacy-controlled product improvement, affiliate attribution, analytics, retailer routing, and aggregated demand intelligence.

References to "sale," "sharing," "targeted advertising," or similar terms in these Terms refer to definitions under applicable privacy laws and do not mean that K Scan sells raw scans, uploaded images, biometric identifiers, facial recognition data, or sensitive personal information.

- Uploaded images and scans may be processed by AI systems to operate, secure, maintain, and improve the Service.
- K Scan does not sell raw uploaded scans, images, biometric identifiers, face templates, face geometry, or facial recognition data.
- K Scan does not use uploaded scan content for facial recognition, biometric identification, biometric surveillance, or to identify individuals.
- K Scan may share limited non-sensitive information, such as commercial interaction data, attribution data, preference signals, analytics data, inferred fashion interests, product-interest signals, or related information, with service providers, retail partners, affiliate partners, commerce partners, advertising partners, analytics providers, attribution providers, or marketing partners where permitted by law and subject to applicable consent, opt-out rights, contractual restrictions, platform rules, and user privacy controls.

- K Scan may create, use, disclose, license, sell, or commercialize aggregated, anonymized, or de-identified demand intelligence that does not reasonably identify an individual.
- Privacy rights, opt-out requests, consent withdrawal, data retention, and deletion handling are described in the Privacy Policy.

K Scan does not claim ownership of your raw uploaded images or scans.

5.1 Data Rights and Downstream Requests

Users may request access, correction, deletion, export, restriction, objection, or consent withdrawal where required by applicable law.

K Scan may retain information where legally permitted for security, fraud prevention, legal compliance, dispute resolution, backup recovery, tax, accounting, or legitimate business records.

Where required by law, K Scan will take reasonable steps to notify relevant service providers, contractors, and third parties to whom covered information was disclosed, sold, or shared as defined by applicable privacy law so they can act on verified deletion requests.

Use of the terms "sale," "sharing," or similar terms in this section refers to meanings under applicable privacy laws and does not mean that K Scan sells raw scans, uploaded images, biometric identifiers, facial recognition data, or sensitive personal information.

5.2 Non-Discrimination for Privacy Choices

K Scan will not unlawfully discriminate against users for exercising privacy rights.

Core Service access will not be denied solely because a user opts out of sale, sharing, targeted advertising, or tracking where applicable, although optional personalized, marketing, advertising-supported, attribution-supported, or partner-supported experiences may change.

5.3 Voice and Microphone

The initial mobile release of K Scan does not request microphone permission and does not collect voice, microphone, speech-recognition, raw audio, or voiceprint data.

If K Scan introduces voice search, wake phrases, microphone access, or speech recognition in a future release, K Scan will update these Terms and the Privacy Policy, add required device permission disclosures, and request any required consent before collecting or processing voice or audio data.

6. User Content and Limited License

You retain ownership of your User Content.

By submitting User Content, you grant K Scan a limited, non-exclusive, worldwide, royalty-free license to host, process, analyze, reproduce as technically necessary, display to you, transform, and transmit your User Content solely for the following purposes:

- operating, securing, maintaining, and improving the Service;
- generating AI Outputs you request;
- providing product matches, retailer links, visual-search results, saved items, and related features;
- safety, moderation, diagnostics, quality assurance, and fraud prevention;
- improving machine-learning systems and product performance in ways permitted by the Privacy Policy and applicable law.

K Scan will not use raw uploaded imagery to train third-party AI models, third-party foundation models, or systems designed to reproduce your specific images or identify you without additional disclosure and consent where required.

If K Scan uses a third-party AI provider to process scans, prompts, or related content, K Scan will identify that provider role in the Privacy Policy and obtain any permission required by Apple's rules, other platform rules, or applicable law before sharing personal data for that purpose.

This license does not transfer ownership of your raw uploaded images to K Scan.

This license does not authorize K Scan to sell, license, or commercially distribute raw scan files, uploaded images, biometric identifiers, facial recognition data, or re-identifiable scan datasets to third-party data buyers.

K Scan may create and use aggregated, anonymized, or de-identified analytics, commercial, preference, attribution, inference, and demand-intelligence data from Service use and may use, disclose, license, sell, or commercialize such data where permitted by law and described in the Privacy Policy, provided it does not reasonably identify you.

6.1 Face and Bystander Protection

K Scan is not designed to identify people in public spaces.

K Scan applies on-device face-detection and privacy-filtering controls to blur detected faces before transmitting scan images for cloud processing. If privacy filtering cannot be completed for a supported scan path, K Scan may reject the upload or apply additional privacy controls before processing.

K Scan does not use scans for facial recognition, identity verification, biometric profiling, or surveillance.

K Scan does not use facial, biometric, depth, or bystander-derived data for identity verification, advertising, or demand-intelligence products.

6.2 Aggregated Demand Intelligence

K Scan may create, use, disclose, license, sell, or commercialize aggregated, anonymized, or de-identified demand intelligence, trend insights, market analysis, retailer analytics, product-performance signals, category-interest patterns, and commercial data products that do not reasonably identify an individual.

Aggregated Demand Intelligence may include fashion trend signals, product demand patterns, scan-volume trends, category interest data, style-preference trends, city-level or broader geography demand signals, retailer performance insights, product-match analytics, conversion analytics, anonymized market research, and aggregated commercial intelligence.

K Scan maintains technical, organizational, and contractual controls designed to prevent re-identification of aggregated, anonymized, or de-identified demand-intelligence data.

6.3 Enterprise, API, and SDK Services

Enterprise, API, SDK, white-label, OEM, or partner-integrated services may be governed by separate written agreements, data-processing terms, service-level terms, security requirements, or commercial terms. If separate written terms apply and conflict with these Terms, the separate written terms control for that specific enterprise, API, SDK, or partner relationship.

K Scan's enterprise and SDK offerings must preserve the core privacy commitments in these Terms and the Privacy Policy unless a separate lawful agreement, disclosure, and consent structure applies.

7. AI Processing and Outputs

K Scan uses AI and automated systems to identify fashion items, extract product attributes, generate style signals, rank product matches, personalize results, and provide fashion discovery tools.

AI Outputs are probabilistic and may contain inaccuracies, incomplete information, visually similar but non-identical products, outdated retailer information, or unavailable products.

Pricing, brand identification, availability, fit, authenticity, sizing, retailer information, and product descriptions may be inaccurate or change without notice.

AI Outputs are for discovery and informational purposes only. They do not constitute professional advice, authentication advice, sizing advice, legal advice, financial advice, resale advice, or purchasing advice.

K Scan does not use AI systems to identify people, perform facial recognition, generate biometric profiles, or make decisions about eligibility for employment, housing, credit, healthcare, insurance, education, or other legally significant opportunities.

You are responsible for independently evaluating AI Outputs before relying on them or making a purchase decision.

K Scan may improve, retrain, refine, or modify AI systems, subject to applicable legal requirements and the Privacy Policy.

8. Retail, Affiliate, and Third-Party Commerce Disclaimer

K Scan is a visual-commerce discovery platform.

K Scan does not manufacture, inspect, authenticate, warehouse, endorse, ship, fulfill, or guarantee products displayed through the Service.

Third-party retailers, marketplaces, advertisers, brands, affiliate partners, and commerce providers are independent from K Scan unless expressly stated.

Your interactions with third-party retailers, including purchases, returns, exchanges, warranties, fulfillment, shipping, payment processing, customer support, and disputes, are governed by those third parties' terms and policies.

K Scan is not a party to transactions between you and third-party retailers.

K Scan does not guarantee product authenticity, pricing, availability, sizing, quality, legality, safety, shipping, fulfillment, return policies, warranties, seller legitimacy, or retailer performance.

K Scan may receive compensation, referral fees, affiliate revenue, advertising revenue, attribution revenue, partner reporting revenue, aggregated, anonymized, or de-identified demand-intelligence revenue as described in the Privacy Policy, or other commercial consideration from partners.

Sponsored or paid placements are identified as such where required by law or platform rules. Sponsored placements should not override relevance or be presented as organic results where disclosure is required.

9. Creator, Affiliate, and Sponsored Content Disclosures

If K Scan supports creator collections, referral links, affiliate campaigns, paid placements, sponsored recommendations, or promotional content, K Scan may require creators, partners, retailers, advertisers, and users to provide clear and conspicuous disclosures where required by law or platform rules.

You agree not to remove, hide, obscure, or misrepresent required sponsorship, affiliate, advertising, or material-connection disclosures.

K Scan may provide disclosure tools, labels, templates, or instructions to support compliant creator, affiliate, or sponsored content.

10. User Responsibilities and Prohibited Uses

You agree not to:

- upload content you do not have the legal right to use;
- upload government identification, financial records, medical information, confidential documents, or sensitive third-party data unless a feature expressly requires it and you have the right to do so;
- use the Service for unauthorized surveillance, facial identification, stalking, harassment, tracking individuals without consent, or violating third-party privacy rights;
- reverse engineer, scrape, decompile, benchmark without authorization, bypass rate limits, attack the Service, attempt prompt injection, attempt model extraction, or use outputs to train competing AI systems;
- upload unlawful, infringing, counterfeit, harmful, abusive, hateful, sexually exploitative, deceptive, harassing, or otherwise objectionable content;
- use the Service to facilitate fraud, counterfeit sales, deceptive commerce, or infringement;
- interfere with the Service's security, integrity, availability, or performance;
- violate applicable law or third-party rights.

11. Intellectual Property

The Service, including software, AI systems, recommendation engines, visual-analysis systems, model workflows, interface systems, graphics, trade dress, brand elements, documentation, design language, and related technology, is owned by K Scan or its licensors.

No ownership rights are transferred to users.

All rights not expressly granted are reserved.

You may not copy, modify, distribute, sell, lease, sublicense, create derivative works from, or reverse engineer any part of the Service except as permitted by applicable law.

12. Beta, Preview, and Experimental Features

Beta, preview, early access, or experimental features may contain bugs, inaccuracies, interruptions, security issues, incomplete functionality, or changing functionality.

They are provided on an "as is" and "as available" basis, may change or be discontinued at any time, and are used at your own risk.

13. Payments, Subscriptions, and Future Monetization

K Scan may introduce subscriptions, paid features, in-app purchases, affiliate monetization, advertising, data insights, partner insights, enterprise tools, APIs, SDKs, or other commercial models.

Paid features may be subject to additional terms, app-store rules, refund policies, checkout disclosures, or separate agreements.

If K Scan offers paid digital features, subscriptions, premium AI features, scan quotas, account upgrades, digital content, or functionality unlocked within the iOS app, those features will be offered in accordance with Apple's applicable payment rules, including StoreKit or in-app purchase where required.

Retailer links for physical goods may route users to third-party retailer websites or apps. Purchases of physical goods or services consumed outside the app are handled by the applicable third-party retailer or commerce provider, not by K Scan.

K Scan does not process payment card data for purchases completed directly with third-party retailers.

14. Cookies, Tracking, Analytics, Advertising Technologies, and SDKs

K Scan may use cookies, SDKs, pixels, analytics tools, device identifiers, attribution tools, advertising technologies, affiliate tracking technologies, crash-reporting tools, performance-monitoring tools, and marketing platforms as described in the Privacy Policy.

K Scan requests permission through Apple's App Tracking Transparency framework before any activity that constitutes tracking under Apple's rules.

If the initial mobile release does not engage in tracking under Apple's rules, K Scan will not request App Tracking Transparency permission until such tracking is introduced in a later release.

K Scan also complies with tracking-permission requirements on other platforms where applicable.

You may decline tracking without losing access to core Service functionality, although optional personalization, advertising-supported, attribution-supported, or partner-supported experiences may change.

K Scan may use third-party vendors, SDKs, or processors to support app functionality, authentication, analytics, crash reporting, cloud processing, affiliate attribution, advertising measurement, security, fraud prevention, customer support, and marketing.

Third-party services are governed by their own terms and privacy practices, except where they act as K Scan service providers under contract.

K Scan is responsible for aligning its app-store privacy disclosures with the actual third-party code, SDKs, and data flows used in the app.

15. Copyright Notices

If you believe content on the Service infringes your copyright, send a notice identifying the copyrighted work, the allegedly infringing material, your contact information, a good-faith statement, and a statement under penalty of perjury to kscanai.app@gmail.com.

This section provides a mechanism for copyright notices.

If K Scan later registers a designated copyright agent, this section will be updated accordingly.

16. Disclaimer of Warranties

THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE."

TO THE MAXIMUM EXTENT PERMITTED BY LAW, K SCAN DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, AVAILABILITY, RELIABILITY, SECURITY, AND ERROR-FREE OPERATION.

K SCAN DOES NOT WARRANT THAT THE SERVICE, AI OUTPUTS, PRODUCT MATCHES, RETAILER LINKS, PRICING INFORMATION, AVAILABILITY INFORMATION, STYLE RECOMMENDATIONS, OR THIRD-PARTY COMMERCE INFORMATION WILL BE ACCURATE, COMPLETE, CURRENT, SECURE, UNINTERRUPTED, OR ERROR-FREE.

Some jurisdictions do not allow certain warranty limitations, so some disclaimers may not apply to you.

17. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, K SCAN SHALL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES; LOSS OF PROFITS, DATA, GOODWILL, OR BUSINESS INTERRUPTION; RELIANCE ON AI OUTPUTS; COUNTERFEIT PRODUCTS; THIRD-PARTY FRAUD; RETAILER TRANSACTIONS; OR THIRD-PARTY SERVICE FAILURES.

K Scan's total liability for any claim shall not exceed the greater of amounts paid by you to K Scan in the preceding 12 months or \$100 USD, unless prohibited by law.

Nothing in these Terms limits liability that cannot lawfully be limited under applicable consumer, privacy, data protection, product liability, or other mandatory law, including laws in the European Union, United Kingdom, Australia, California, or other jurisdictions where such limitations are unenforceable.

18. Indemnification

You agree to defend, indemnify, and hold harmless K Scan, its officers, directors, employees, contractors, affiliates, agents, licensors, and service providers from claims, damages, losses, liabilities, and expenses arising from:

- your use of the Service;
- your User Content;
- your violation of these Terms;
- your violation of law;
- your violation of third-party rights;
- misuse of AI Outputs;
- unauthorized use of retailer or third-party content.

This indemnity does not apply to losses caused solely by K Scan's own violations of applicable privacy, consumer protection, or other law where such waiver would be prohibited.

19. Suspension and Termination

K Scan may suspend or terminate access at any time for violations of these Terms, suspected abuse, fraud, unlawful activity, security concerns, nonpayment, operational reasons, risk to the Service, or risk to other users or third parties.

Upon termination, your right to use the Service ceases.

Certain provisions survive termination, including privacy/data rights, intellectual property, commercial data rights, AI disclaimers, third-party commerce disclaimers, warranty disclaimers, liability limits, indemnity, governing law, dispute provisions, and any provisions that by their nature should survive.

20. Governing Law and Informal Resolution

These Terms are governed by the laws of the State of Ohio, United States, without regard to conflict-of-law principles, except that mandatory consumer protections in your jurisdiction may apply.

Before filing a claim, you agree to contact K Scan at kscanai.app@gmail.com and allow 30 days for informal resolution.

If K Scan does not resolve the dispute within 30 days, you may proceed with formal dispute resolution as permitted by applicable law.

Any court proceeding not subject to mandatory consumer-law venues shall be brought in state or federal courts located in Cuyahoga County, Ohio, unless applicable consumer law provides otherwise.

For consumers in the European Economic Area, United Kingdom, Australia, or other jurisdictions with mandatory consumer protection laws, those protections apply and cannot be overridden by these Terms.

21. App Store and Platform Terms

If you download or access the app through the Apple App Store, Google Play, or another app platform, your use of the app must also comply with that platform's applicable terms.

Apple App Store

If you obtained the app through the Apple App Store, you acknowledge and agree that:

- these Terms are concluded between you and K Scan only, and not with Apple;
- K Scan, not Apple, is solely responsible for the Service and its content;
- Apple has no obligation to furnish maintenance or support services with respect to the Service;
- Apple is not responsible for addressing claims relating to the Service, including product liability claims, consumer protection claims, intellectual property claims, or claims that the Service fails to conform to legal or regulatory requirements;
- your use of the Service must comply with the Apple Media Services Terms and Conditions and applicable App Store rules;
- Apple and its subsidiaries are third-party beneficiaries of this section and may enforce this section against you.

For users who obtain the iOS app through the Apple App Store, these Terms supplement Apple's Licensed Application End User License Agreement, also known as the Standard EULA, unless K Scan provides a custom EULA in App Store Connect for the applicable storefront.

To the maximum extent permitted by applicable law, Apple will have no warranty obligation with respect to the app, and any other claims, losses, liabilities, damages, costs, or expenses attributable to any failure to conform to any warranty will be governed by these Terms.

Nothing in this section limits any rights you may have under applicable law or Apple's applicable terms.

Google Play and Other Platforms

If you obtained the app through Google Play or another platform, your use of the Service must also comply with that platform's applicable terms, policies, and payment rules.

22. Accessibility and Localization

K Scan aims to support accessible digital experiences.

If you encounter accessibility barriers, contact kscanai.app@gmail.com.

These Terms are provided in English. Translations are for convenience only unless required by law.

23. Changes to These Terms

K Scan may update these Terms from time to time.

If we make material changes, we may provide additional notice where required by law.

Continued use of the Service after updated Terms become effective means you accept the revised Terms, except where applicable law requires separate affirmative consent or another form of authorization.

Previous versions of these Terms may be available upon request.

24. Force Majeure

K Scan will not be liable for delay or failure to perform due to events beyond its reasonable control, including natural disasters, acts of war, terrorism, labor disputes, internet or telecommunications failures, cloud-provider outages, power failures, government actions, platform restrictions, security incidents, or other events outside K Scan's reasonable control.

25. Miscellaneous

These Terms and the Privacy Policy constitute the entire agreement between you and K Scan regarding the Service, unless additional written terms apply to a particular product or relationship.

If any provision is found unenforceable, the remaining provisions remain in effect to the fullest extent permitted by law.

Failure to enforce a provision is not a waiver.

You may not assign these Terms without K Scan's consent.

K Scan may assign these Terms in connection with affiliates, restructuring, merger, acquisition, financing, or sale of assets.

No third party has rights under these Terms unless expressly stated.

26. Contact Information

For questions about these Terms, legal notices, copyright notices, accessibility issues, or general policy concerns, contact:

K Scan AI

Email: kscanai.app@gmail.com

Website: <https://kscan.app>

Privacy-first fashion discovery.